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LITIGATION NEWSLETTER

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DIGITAL CENSORSHIP IN INDIA

Introduction

The expansion of digital communication has fundamentally transformed the structure of public discourse by shifting expression from traditionally regulated, linear media systems to decentralized, algorithmically mediated platforms. This evolution has altered the regulatory problem from controlling identifiable publishers to governing dispersed networks of intermediaries, users, and infrastructure operators.

This note examines the constitutional tension between the right to freedom of speech and expression under Article 19(1)(a) and the State's regulatory authority under Article 19(2). It focuses on how India's digital governance framework increasingly relies on intermediary liability regimes, executive blocking powers, and telecom infrastructure control, thereby raising concerns relating to proportionality, procedural safeguards, and indirect forms of censorship.

Understanding Digital Expression Governance in India

India's digital regulatory framework is primarily anchored in the Information Technology Act, 2000, read with the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021.

A significant contemporary development within this framework is the 2023 Fact-Check Amendment to the IT Rules, 2021, which empowered the Ministry of Electronics and Information Technology (MeitY) to notify a Fact-Checking Unit (FCU) for identifying "fake or misleading information" relating to Central Government business. While positioned as an informational correction mechanism, the FCU framework effectively

extends State influence into classification of truth-claims in the digital public sphere, thereby raising concerns regarding definitional vagueness and potential chilling effects on journalistic and satirical speech.

The statutory ecosystem continues to operate through a dual structure. First, content-based regulation addresses unlawful speech such as obscenity, sexually explicit material, and child sexual abuse material under Sections 67, 67A, and 67B of the IT Act, along with intermediary due diligence obligations under Section 79. Second, state-directed content control mechanisms operate through Section 69A blocking powers, enabling the Government to restrict public access to information on grounds including sovereignty, security of the State, and public order.

A further layer of governance emerges under the Telecommunications Act, 2023, which expands State authority over communication infrastructure, including interception and suspension of telecommunication services during specified contingencies.

Digital platforms and the changing nature of expression control

Traditional regulatory systems such as broadcast law were designed for a push-based model, where content is centrally produced and transmitted in a linear manner to passive audiences. Digital ecosystems, however, function on a pull-based architecture in which users actively select content and algorithmic systems determine visibility.

This structural shift produces three consequences: instantaneous dissemination at scale, diffusion of publication responsibility across actors, and algorithmic amplification of content beyond editorial control. These dynamics complicate the application of legacy regulatory assumptions grounded in identifiable publishers and linear dissemination models.

Emerging procedural challenges in digital governance

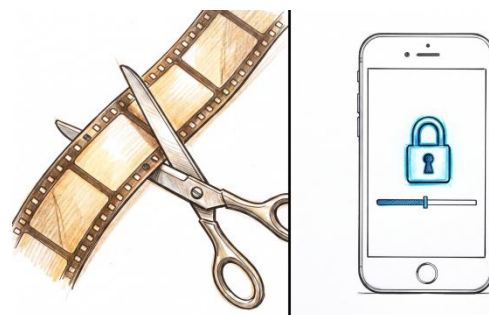
Digital governance increasingly relies on intermediaries as enforcement nodes under the safe harbour regime in Section 79 of the IT Act, 2000. Compliance with takedown directions, grievance redressal obligations, and due diligence requirements under the IT Rules, 2021 becomes a condition for retaining immunity from liability.

A critical contemporary concern is the weaponization of Section 79 safe harbour, wherein intermediary immunity is indirectly conditioned on adherence to executive advisories and informal governmental directions. This creates a coercive compliance environment where platforms may undertake extra-judicial removals of content to avoid regulatory exposure, even in the absence of formal adjudication.

This structural dependency transforms intermediaries into de facto enforcement extensions of the State, raising concerns regarding procedural fairness, transparency, and absence of judicial oversight at the point of censorship.

Recent trends and systemic challenges in the digital era

Digital regulation increasingly interacts with algorithmic systems that determine content ranking, visibility, and suppression, thereby shifting censorship from direct state action to infrastructural governance embedded within platform architecture.



A. Systemic Regulatory Effects

Three systemic consequences are evident. First, anticipatory compliance, where platforms pre-emptively remove content to mitigate regulatory risk. Second, opacity in algorithmic governance, which limits transparency in moderation and ranking decisions. Third, diffusion of accountability, where regulatory responsibility is distributed between State authorities, intermediaries, and automated systems.

The Supreme Court's jurisprudence in *Shreya Singhal v. Union of India* reinforces that vague or overbroad restrictions produce a chilling effect inconsistent with Article 19(1)(a). Similarly, *S. Rangarajan v. P. Jagjivan Ram* establishes that restrictions must have a proximate and direct nexus to the anticipated harm rather than speculative justification.

B. Judicial Pushback against FCU Framework

The 2023 Fact-Check Unit amendments under the IT Rules have also generated judicial scrutiny. In *Kunal Kamra v. Union of India* (Bombay High Court), the FCU mechanism was struck down on constitutional grounds, with the Court emphasising that state-controlled determination of "truth" in relation to online content risks violating Article 19(1)(a) due to vagueness, overbreadth, and absence of procedural safeguards.

This judicial intervention reflects an emerging constitutional concern regarding state monopolisation of informational authenticity, particularly where such determinations directly affect intermediary liability under safe harbour provisions.



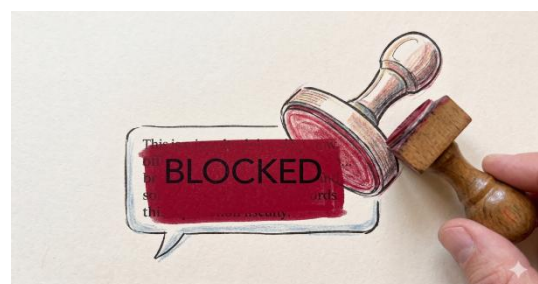
C. Case Study: *Dhurandhar: The Revenge* (2026)

The regulatory treatment of the 2026 film *Dhurandhar: The Revenge* illustrates contemporary asymmetries in censorship architecture.

First, the film's theatrical release was subjected to stringent pre-clearance and editing requirements under CBFC oversight, reflecting the continued relevance of traditional pre-publication censorship in cinema under the Cinematograph regulatory framework.

Second, the same film's international OTT release circulated in an "uncut version" under the IT Rules, 2021 self-classification regime, highlighting a regulatory divergence between theatrical pre-censorship and platform-based post-hoc classification models.

Third, litigation before the Delhi High Court through a public interest petition challenged the film's depiction of intelligence operations, invoking concerns under the "security of the State" limb of Article 19(2). This reflects an expanding interpretive trend where fictionalised representations of intelligence tradecraft are increasingly assessed through national security frameworks rather than artistic expression standards.



Finally, the case illustrates a structural shift in platform strategy: experimentation with live-stream-only and synchronous release formats, which reduce pre-moderation feasibility and challenge traditional ex-ante regulatory review mechanisms.

International perspectives on digital speech governance

The United States adopts a speech-protective model grounded in the First Amendment, reinforced by strong intermediary immunity under Section 230 of the Communications Decency Act.

The European Union operates under the Digital Services Act, which imposes systemic risk assessment, transparency obligations, and accountability frameworks for large digital platforms.

The United Kingdom implements a duty-of-care model under its Online Safety framework, requiring platforms to proactively mitigate online harms through compliance-driven regulatory obligations.

Balancing freedom of speech and state authority

The constitutional balance between Article 19(1)(a) and Article 19(2) requires that restrictions be lawful, necessary, and proportionate. Regulatory measures must be narrowly tailored and supported by a demonstrable nexus between speech and harm.

Judicial doctrine consistently rejects vague or overbroad restrictions and insists on procedural safeguards, reasoned decision-making, and proportional enforcement mechanisms. At the same time, courts recognise the legitimacy of State intervention where expression poses a direct and proximate threat to constitutionally protected interests.

Suggestions

Regulatory safeguards should include clear statutory thresholds for blocking and takedown orders, supported by reasoned written justifications. Independent oversight mechanisms for Section 69A powers should be strengthened to ensure transparency and accountability.

Intermediaries should be required to publish structured transparency reports detailing content moderation practices and algorithmic enforcement decisions. Delegated legislation affecting speech should remain procedural in nature and avoid substantive expansion of censorship powers without parliamentary scrutiny.

Procedural safeguards such as notice-and-opportunity frameworks should be incorporated where feasible. Emergency blocking orders should be subject to ex-post judicial review within defined timelines. Additionally, AI-driven moderation systems should be governed through standardized accountability frameworks ensuring explainability and auditability.

Key takeaway

“The constitutional challenge of the digital age lies not in whether speech may be regulated, but in ensuring that the architecture of its regulation remains procedurally fair, legally constrained, and democratically accountable.”

Contributors to this Newsletter:

ABHAY CHITRAVANSHI

PARTNER

Litigation, ADR & White-Collar Crimes

RIYA GOEL

ASSOCIATE

Litigation, ADR & White-Collar Crimes

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AB INITIO LEGAL LLP

Tel: 011-40393888, +91-8800808022

Email: mail@abinitiolegal.in , communications@abinitiolegal.in

**Head Office: 1010, 1011-B, Indraprakash Building, 21, Barakhamba Road,
New Delhi – 110001,**

Chamber No. 395, Lawyers Chamber Block-II, Delhi High Court
Sher Shah Road, New Delhi-110003

Gurgaon: 1003, 10th Floor, Tower-D, Vatika Light House at Vatika Town Square,
Sector 82-A, Gurgaon-122004